

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF ORANGE**

ABIGAIL MAMBOLEO,
a California citizen, individually and
on behalf of all others similarly situated,

Plaintiff,

v.

PACIFIC LIFE INSURANCE COMPANY,
a California citizen,

Defendant.

Case No. 30-2021-01208045-CU-BT-CXC

**CLASS ACTION SETTLEMENT
AGREEMENT**

Honorable Melissa McCormick
Department CX104

Complaint filed: June 29, 2021
Pretrial Conference: Not Set
Trial Date: Not Set

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CLASS ACTION SETTLEMENT AGREEMENT

Plaintiff Abigail Mamboleo (“**Plaintiff**”) in the above-captioned action, *Mamboleo v. Pacific Life Insurance Company*, No. 30-2021-01208045-CU-BT-CXC (Orange Cnty. Sup. Ct.) (the “**Litigation**”), and Defendant Pacific Life Insurance Company (“**Pacific Life**” or “**Defendant**”), stipulate and agree, pursuant to the terms and conditions set forth in this Settlement Agreement (the “**Settlement Agreement**”), to settle, dismiss, and compromise the claims asserted against Defendant in the Litigation as set forth herein.

RECITALS

WHEREAS, Pacific Life is an insurer that underwrites, issues, and administers life insurance products sold to the public, including certain indexed universal life insurance products; and

WHEREAS, Pacific Life offered its Pacific Discovery Xelerator indexed universal life (IUL) insurance policy (the “**PDX Policy**” or “**PDX Policies**”) for sale to consumers between 2017 and 2019; and

WHEREAS, Plaintiff has asserted claims against Pacific Life in the Litigation, individually and on behalf of similarly situated persons who, as California residents, purchased PDX Policies; and

WHEREAS, Plaintiff alleges in the Litigation among other things that Pacific Life marketed and issued the PDX Policies by providing “illustrated performance charts (‘illustrations’) that deceptively projected high profitability based on undisclosed and baseless premises,” thereby causing Plaintiff and other PDX Policy owners to pay “massive, hidden costs that essentially eliminate the value in the PDX Policies”; and

WHEREAS, based on these and other allegations, Plaintiff asserted claims in the Litigation against Pacific Life for Fraud, Deceit, and Intentional Misrepresentation (Count I), Negligent Misrepresentation (Count II), and Violations of California Business and Professions Code §§ 17200 *et seq.* (the “UCL”) (Count III); and

WHEREAS, Pacific Life, the Defendant in the Litigation, vigorously denies any wrongdoing, liability, or fault whatsoever on its part, and specifically denies any alleged wrongdoing regarding the illustrations, sales of the PDX Policies at issue in the Litigation, and its management and administration of the PDX Policies, and further has asserted numerous defenses to the facts alleged, certification of a litigation class, and causes of action asserted in the Litigation, and maintains that its actions with respect to the PDX Policies have been proper, lawful, consistent with the terms of the PDX Policies, and appropriate in all respects; and

WHEREAS, without conceding that any of her claims lack merit, Plaintiff and Class Counsel have concluded that it is in the best interests of the Settlement Class (defined below) to settle the Litigation on the terms set forth herein, and that the Settlement set forth in this Settlement

Agreement is fair, reasonable, adequate, and in the best interests of Plaintiff and the Settlement Class; and

WHEREAS, the parties to the Litigation and their respective counsel, after extensive litigation, mediation, arm's length negotiation, and analysis, have agreed upon the terms and conditions set forth herein to settle and resolve the Litigation in order to avoid the expense, burden, and risks associated with further protracted litigation; and

WHEREAS, the parties to the Litigation desire and intend by this Settlement Agreement to settle finally and completely, and effectuate a final resolution of the Released Claims of all Settlement Class Members, and to provide for a complete, full, and final release of the Released Claims in favor of the Released Parties, as described below;

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, Plaintiff, individually and on behalf of the Settlement Class as defined below, and Defendant, hereby agree to the full and complete settlement of the Litigation, subject to Court approval, according to the terms and conditions set forth herein.

I. DEFINITIONS

As used in this Settlement Agreement, the capitalized terms defined above and those defined in this section or elsewhere in the Settlement Agreement shall have the meanings so designated when used throughout this Settlement Agreement.

1. The term "**Accumulated Value**" shall have the same meaning as used in the PDX Policies.

2. The term "**Class Counsel**" means Andrew S. Friedman and Francis J. Balint of Bonnett Fairbourn Friedman & Balint, PC; Steven G. Sklaver, Seth Ard, Glenn Bridgman, Anna C. Coll, and Kimberly Page of Susman Godfrey L.L.P.; Adam M. Moskowitz, Howard M. Bushman, and Barbara C. Lewis of The Moskowitz Law Firm, PLLC; and Ingrid M. Evans of Evans Law Firm, Inc.

3. "**Class Fee and Expense Application**" means the application to the Court by Class Counsel seeking an award of attorney's fees and Litigation Expenses.

4. The term "**Class Policy**" or "**Class Policies**" means a PDX Policy or PDX Policies purchased by a Settlement Class Member.

5. The term "**Class Representative**" means Plaintiff Abigail Mamboleo.

6. The term "**Counsel for Defendant**" or "**Defendant's Counsel**" means Irma Reboso Solares, Julianna Thomas McCabe, Todd M. Fuller, and Markham R. Leventhal of Carlton Fields, PA., and Austin Jackson of Carlton Fields, LLP.

7. The term "**Court**" means the Superior Court of California in and for Orange County.

8. The term "**Data Collection Date**" means the date as of which Pacific Life will pull updated data (e.g., policy status, premiums paid, etc.) related to the PDX Policies and the Settlement Class for purposes of the Settlement.

9. The term "**days**" means calendar days and not court or business days unless otherwise indicated. In computing any time period specified in this Agreement, when the period is stated in days, the day of the event that triggers the period is excluded, and if the last day is a Saturday, Sunday, or legal holiday, the period continues to run until the end of the next day that is not a Saturday, Sunday, or legal holiday.

10. The term "**Deceased Insured**" means the insured named on the Policy Specifications pages for a PDX Policy who, for any In-Force Policy, is deceased prior to the Distribution Date, or who, for a Terminated Policy, is deceased prior to the timely submission of a Term Insurance Application.

11. The term "**Defendant**" means the Defendant in the Litigation, Pacific Life Insurance Company, and its affiliates, successors and assigns.

12. The term "**Distribution Date**" means the date, within 60 days after the Effective Date, by which the In-Force Policy Relief is credited to the Accumulated Values for eligible Settlement Class Members, and by which the Term Insurance Policies will be sent to eligible Settlement Class Members who applied for Term Insurance Relief by the Term Insurance Application Deadline.

13. The term "**Effective Date**" means the date on which the Final Approval Order and Judgment approving the Settlement becomes final and not subject to further appeal. If no appeal has been taken from the Final Approval Order and Judgment, the Effective Date means the date on which the time to appeal therefrom has expired. If any appeal has been taken from the Final Approval Order and Judgment, the Effective Date means the date on which all appeals therefrom, including petitions for rehearing, petitions for rehearing en banc, and petitions for certiorari or any other form of review, have been finally disposed of in a manner that affirms the Final Approval Order and Judgment.

14. The term "**Fee and Expense Order**" means the Court's ruling on the contemplated Class Fee and Expense Application as described in Section IV.

15. The term "**Final Approval Hearing**" means the hearing conducted by the Court to determine whether to grant final approval of this Settlement and to determine the fairness, adequacy, and reasonableness of this Settlement.

16. The term "**Final Approval Order and Judgment**" means the Final Approval Order and Judgment entered by the Court in the form attached to this Agreement as Exhibit A.

17. The term **"In-Force Policy"** or **"In-Force Policies"** means one or more PDX Policies that are not Terminated Policies as of the Data Collection Date, and that were purchased by one or more Settlement Class Members.

18. The term **"In-Force Policyowner"** means the owner of an In-Force Policy.

19. The term **"Lead Class Counsel"** means Andrew S. Friedman of the law firm Bonnett Fairbourn Friedman & Balint, PC, Steven G. Sklaver of the law firm of Susman Godfrey L.L.P., and Howard Bushman of The Moskowitz Law Firm PLLC.

20. The term **"Litigation"** shall mean the civil action captioned *Abigail Mamboleo v. Pacific Life Insurance Co.*, Case No. 30-2021-01208045-CU-BT-CXC, filed in the Superior Court for the State of California in and for the County of Orange.

21. The term **"Litigation Expenses"** means the out-of-pocket costs and litigation expenses incurred or disbursed by Class Counsel in the Litigation for which Class Counsel intends to apply to the Court for reimbursement through the Class Fee and Expense Application.

22. The term **"Motion for Final Approval"** means the motion to be filed by Class Counsel, in compliance with the Court's "Guidelines for Approval of Class Action Settlements & PAGA Settlements," to seek final approval of the Settlement.

23. The term **"Notice"** (also, **"Settlement Notice"**) means the written notice of the Settlement provided for under Section VI of this Agreement and in the proposed Preliminary Approval Order. The Notice shall be disseminated to the Settlement Class and posted on the Settlement Website in the form attached as Exhibit B hereto, in accordance with the Notice Plan, and subject to the approval of the Court in the Preliminary Approval Order.

24. The term **"Notice Date"** means the date specified in the Preliminary Approval Order, which shall be no later than thirty (30) days after entry of the Preliminary Approval Order, on which the Settlement Administrator is to have posted the Notice on the live Settlement Website, and mailed and emailed the Notice to the Settlement Class.

25. The term **"Notice Plan"** shall have the meaning ascribed to it in Section VI of this Agreement.

26. The term **"Objection and Opt-Out Deadline"** means the date sixty (60) days after the Notice Date.

27. The term **"Parties"** means Plaintiff and Defendant.

28. The term **"PDX Policy"** or **"PDX Policies"** means one or more Pacific Discovery Xelerator indexed universal life ("IUL") insurance policies issued by Pacific Life and purchased by a resident of California. It does not mean or include any Pacific Discovery Xelerator IUL 2 ("PDX 2") indexed universal life insurance policy or policies. PDX 2 is a substantially different product that is not at issue in the Litigation.

29. The term “**Person**” or “**Persons**” means any individual or entity, public or private.
30. The term “**Plaintiff**” means Abigail Mamboleo.
31. The term “**Preliminary Approval Date**” means the date on which the Court enters the Preliminary Approval Order.
32. The term “**Preliminary Approval Order**” means the Order attached to this Agreement as Exhibit C, which, upon entry by the Court, will preliminarily approve the Settlement, conditionally certify the Settlement Class for purposes of settlement only, approve the Notice Plan, and schedule a Final Approval Hearing to address final approval of the Settlement and final certification of the Settlement Class.
33. The term “**Release**” means the release of claims set forth in Section VIII.
34. The term “**Released Claims**” means the claims released as set forth in Section VIII.
35. The term “**Released Parties**” is defined in Section VIII.
36. The term “**Releasing Parties**” is defined in Section VIII.
37. The term “**Service Award**” means a monetary enhancement payment to the Plaintiff from the Settlement Common Fund which shall be subject to Court approval.
38. The term “**Settlement**” means the settlement between Plaintiff, Pacific Life, and Persons encompassed by the Settlement Class, as contemplated by this Agreement.
39. The term “**Settlement Agreement**” means this Class Action Settlement Agreement together with all Exhibits referenced herein and attached hereto.
40. The term “**Settlement Administrator**” means Kroll Settlement Administration LLC, the class action settlement administrator selected by Pacific Life, agreed upon by counsel for the Parties, and to be approved by the Court to administer the Settlement.
41. The term “**Settlement Administration Costs**” means the fees and expenses charged by the Settlement Administrator for the administration of this Settlement, including the costs associated with the Notice Plan and all other fees, expenses, and costs incurred or billed by the Settlement Administrator to provide administrative services in connection with this Settlement consistent with the terms of this Settlement Agreement.
42. The term “**Settlement Class**” or “**Class**” means, for purposes of this Settlement only: All Persons who purchased a PDX Policy issued in California, with the following exclusions: (a) Pacific Life and its officers, members, directors, and employees, (b) Pacific Life’s parents, subsidiaries, successors, predecessors, and any entity in which Pacific Life has a controlling interest; (c) the judge adjudicating this action; (d) any Person whose PDX Policy has a Deceased Insured; (e) any Person alleging wrongful inducement in the purchase of a PDX Policy

in any pending or resolved lawsuit against Pacific Life other than this action; and (f) the legal representatives, successors, or assigns of any of the foregoing excluded Persons, but only in their capacity as such.

43. The term **"Settlement Class Member"** means a Person within the Settlement Class who does not submit a timely and valid request for exclusion from the Settlement pursuant to Section VII below.

44. The term **"Settlement Relief"** means, collectively, all forms of relief made available to Settlement Class Members under this Settlement Agreement, as described in Section III.

45. The term **"Settlement Website"** means the dedicated Settlement Website to be established by the Settlement Administrator and made accessible to the Settlement Class.

46. The term **"Term Insurance Application"** means the form to be completed and signed by Settlement Class Members with Terminated Policies in order to receive Term Insurance Relief as set forth in Section III.

47. The term **"Term Insurance Policy"** or **"Term Insurance Policies"** means a term life insurance policy or certificate issued as part of the Settlement Relief on the life of the insured of a Terminated Policy. A Term Insurance Policy will pay a death benefit only if the insured dies while the Term Insurance Policy is in force. It will include no conversion or renewal rights, no right to change the insured, no free look period, and no accelerated death benefit riders or other riders. It may be issued by Pacific Life or one of its affiliates.

48. The term **"Terminated Policy"** or **"Terminated Policies"** means one or more PDX Policies that has lapsed or been surrendered on or before the Data Collection Date.

II. SETTLEMENT CLASS CERTIFICATION; PRELIMINARY APPROVAL

A. Settlement Class Certification. Defendant agrees not to object to the certification of the Class for settlement purposes only pursuant to California Code of Civil Procedure § 382. The certification of a Settlement Class pursuant to this Agreement shall not constitute an admission or acknowledgement of any kind that the certification of a class under Section 382 would be appropriate outside of the settlement context or absent this Agreement. By entering into this Agreement, the Defendant is not waiving any of its defenses or objections in the Litigation, nor is the Defendant agreeing that the criteria for class certification could be met outside of the settlement context or absent the terms of this Agreement. If the Settlement is not approved for any reason, or if the Effective Date is not reached, Defendant expressly reserves the right to assert all of its objections and defenses to certification of any class, and neither Class Counsel nor Plaintiff or any Settlement Class Member shall offer the terms of this Agreement as evidence in support of any motion to certify a class outside of the Settlement context in this or in any other proceeding.

B. Preliminary Approval.

1. On or before October 29, 2025, Class Counsel shall file a copy of this Agreement with the Court with a Motion for Preliminary Approval of the Settlement consistent with this Agreement, requesting entry of the Preliminary Approval Order in the form of Exhibit C attached hereto. The Preliminary Approval Order shall include provisions:

- a. Finding that the Parties have provided to the Court, through this Agreement, the Motion for Preliminary Approval of Class Action Settlement, and any response thereto by Defendant, information sufficient to enable the court to determine whether to give Notice to the Class;
- b. Preliminarily appointing Plaintiff as the Class Representative, and preliminarily appointing Class Counsel as counsel for the Settlement Class;
- c. Preliminarily approving the Settlement as being within the range of reasonableness such that the Settlement Notice should be provided to the Settlement Class Members;
- d. Preliminary certifying the Settlement Class for purposes of settlement only;
- e. Approving the Notice Plan and Settlement Notice, and directing that the Notice Plan be implemented, and the Settlement Notice be given as set forth in Section VI of this Settlement Agreement;
- f. Scheduling the Final Approval Hearing approximately 90 days following the Notice Date, or as soon thereafter as practicable;
- g. Appointing the Settlement Administrator;
- h. Providing that any objections by any Settlement Class Member to the Settlement Agreement shall be heard and any papers submitted in support thereof shall be considered by the Court at the Final Approval Hearing if, on or before the Objection and Opt-Out Deadline specified in the Settlement Notice and the Preliminary Approval Order, the objecting Settlement Class Member follows the procedures for objecting set forth in this Settlement Agreement and in the Preliminary Approval Order;
- i. Establishing dates by which the Parties shall file any papers in support of the Motion for Final Approval of the Settlement, and Class Counsel's Class Fee and Expense Application, and in response to any valid and timely objections;

- j. Providing that all Persons in the Settlement Class will be bound by the Final Approval Order and Judgment, except those Persons who submit to the Settlement Administrator a valid and timely written request to "opt-out" or exclude themselves in accordance with this Settlement Agreement and the Settlement Notice;
- k. Providing that, pending the Final Approval Hearing and the Effective Date, all proceedings in the Litigation, other than proceedings necessary to carry out or enforce the terms and conditions of this Settlement Agreement, shall be stayed; and
- l. Providing that, from the date of entry of the Preliminary Approval Order until the Court holds the Final Approval Hearing, all Settlement Class Members (except those who have requested exclusion) shall be barred from asserting any claims for which a release will be given if the Court enters the Final Approval Order and Judgment.

2. Following the entry of the Preliminary Approval Order, the Notice Plan shall be effectuated as set forth herein and in the Preliminary Approval Order. The Parties agree that the methods of Settlement Notice described in this Settlement Agreement are valid, effective, and provide the best notice practicable to the Settlement Class solely for the purposes of the Settlement. The Parties further agree that the Settlement Administrator shall provide Class Counsel and Counsel for Defendant with a declaration detailing the manner in which the Notice Plan in its professional opinion provides the best practicable notice under the circumstances, and is reasonably calculated to apprise Settlement Class Members of the Litigation, the Settlement Agreement, their objection rights, and their opt-out rights.

3. Upon entry of the Preliminary Approval Order, Plaintiff, Class Counsel, Defendant, and Counsel for Defendant agree to use reasonable and good faith efforts to effectuate the Court's final approval of the Settlement, including by filing the necessary motion papers and scheduling any necessary hearings on the dates set or approved by the Court.

III. SETTLEMENT RELIEF.

Pursuant to and in accordance with this Settlement Agreement, subject to Court approval, and in exchange for the Release of the Released Claims described below, Pacific Life will make available to Settlement Class Members the following benefits (collectively, the "Settlement Relief"):

A. Settlement Common Fund.

Pacific Life will allocate \$33,000,000.00 to a common settlement fund (the "Gross Settlement Common Fund"). The Gross Settlement Common Fund shall be allocated as set forth in this Settlement Agreement. The Gross Settlement Common Fund, less (i) a proportionate amount attributable to any opt-outs, and less (ii) any (a) Service Award to Plaintiff, and (b) any attorneys' fees and expenses approved to be deducted from the Gross Settlement Common Fund by the Court's Fee and Expense Order (i.e., the "Net Settlement Common Fund"), will be credited to the In-Force Policies of Settlement Class Members, *pro rata*, by the Distribution Date, as follows:

1. **In-Force Policies – Increase to Accumulated Value.** Increases to Accumulated Value will be credited to In-Force Policies by the Distribution Date ("In-Force Policy Relief").

2. **Formula for Calculation of In-Force Policy Relief.** The In-Force Policy Relief credited to a Settlement Class Member for each In-Force Policy owned by the Settlement Class Member shall be calculated as follows:

$$A / B * C$$

Where:

A = In-Force Policy's Total Premiums Paid as of the Preliminary Approval Date;

B = All In-Force Policies' Total Premiums Paid as of the Preliminary Approval Date; and

C = the total Net Settlement Common Fund as calculated after the deductions referenced in Section III.A above

As used below in Section III.C., the "In-Force Policy Relief Percentage" means and shall be equal to A / B.

3. In-Force Policy Relief will be credited to the fixed account for each eligible PDX Policy.

4. If an In-Force Policy of a Settlement Class Member lapses or is surrendered between the Data Collection Date and the Distribution Date, such In-Force Policy will be treated as a Terminated Policy of a Settlement Class Member, unless the insured under the PDX Policy is deceased before a Term Insurance Application is submitted, in which case, the insured shall be treated as a Deceased Insured, and the policy owner will be excluded from the Settlement Class as set forth in Section I, paragraph 42. For any PDX Policy to be treated as a Terminated Policy under this Section, Pacific Life will provide the Settlement Administrator the PDX policy owner's name, address, email address, PDX Policy number, no later than 20 days after the Distribution Date.

5. The proportional reduction of the Gross Settlement Common Fund due to opt-outs shall be calculated as follows: $\$33,000,000.00 - (\$33,000,000.00 * (\text{the total premium paid for all PDX Policies owned by opt-outs (as of the Preliminary Approval Date) / the total premium paid for all PDX Policies as of the Preliminary Approval Date}))$.

For example, if as of the Preliminary Approval Date, there are 50 opt-outs who have paid a total of \$10,000,000.00 in premiums and the total premiums paid by all In-Force Policies is \$850,000,000.00, then \$396,000.00 will be deducted from the Gross Settlement Common Fund as follows:

$\$10,000,000.00 / \$850,000,000.00 = 1.2\%$ of the total premiums paid by the class

$\$33,000,000.00 * 1.2\% = \$396,000.00$

$\$33,000,000.00 - \$396,000.00 = \$32,604,000.00$ prior to the additional deductions referenced in Section III.A. above.

6. As contemplated in Section III.A.4. above, the Parties recognize that certain Settlement Class Members may surrender their In-Force Policies or allow those Policies to lapse between the Data Collection Date and the Distribution Date, such that In-Force Policy Relief cannot be credited to those Policies and those Policies will be treated as Terminated Policies under this Agreement, and will be afforded the opportunity to apply for Term Insurance Relief subject to the limitations of Section III.A.4. The Parties also recognize that the insureds under certain In-Force Policies may die after the Data Collection Date but prior to the Distribution Date, thereby resulting in a reduction of the number of In-Force Policies in the Settlement Class. The In-Force Policies described in this paragraph will have been included in the calculations for In-Force Policy Relief described in Section III.A.2, and such calculation will not subsequently be altered or adjusted based on terminations or deaths occurring prior to the Distribution Date. Similarly, the distribution of the Net Settlement Common Fund will not be adjusted as a result of terminations or the deaths of insureds under In-Force Policies prior to the Distribution Date. To do so would create significant complications in the calculation and distribution of relief to Settlement Class Members. Any amount of the Net Settlement Common Fund that is not credited to In-Force Policies because of a termination or the death of an insured is not intended to be considered a reversion, and will not be subject to the "unpaid residue" provisions of California Code of Civil Procedure § 384. If any such amount is considered "unpaid residue," however, such residue will be retained by Pacific Life.

B. Term Life Insurance for Terminated Policies. Pacific Life shall make available in the Settlement, up to a maximum of \$25,000,000.00 in aggregate face value of term life insurance ("Term Insurance Relief") for those Settlement Class Members with Terminated Policies. The Term Insurance Relief will be offered to eligible Settlement Class Members and will have a coverage period of three (3) years. It is separate from, and is not funded by, the Gross Settlement Common Fund.

1. Term Insurance Relief is subject to the following terms and limitations:

- a. Each Settlement Class Member who purchased a PDX Policy that is a Terminated Policy has a right to receive Term Insurance Relief for three (3) years.
- b. The face amount of each Term Insurance Policy shall be calculated as follows (the "Term Insurance Relief Formula"):

$$A / B * 25,000,000$$

Where:

A = The Terminated Policy's Total Face Amount as of the Data Collection Date;

B = All Terminated Policies' Total Face Amount as of the Data Collection Date; and

A / B = Term Insurance Relief Percentage.

- c. The initial owner or owners under the Term Insurance Policies shall be determined by Pacific Life based on the owner or owners of each Terminated Policy as of the date of termination. Change of owner and beneficiary shall be allowed in accordance with the Term Insurance Policies. The individual to be insured under any Term Insurance Policy must be the same individual who was the insured listed on the Policy Specifications pages of the Terminated Policy.
- d. No medical exam will be required for any eligible Settlement Class Member to apply for Term Insurance Relief, nor will the Term Insurance Application contain any questions or seek any information concerning the medical condition of the individual to be insured by the Term Insurance Policy.
- e. If the Terminated Policy's policy owner is deceased or a dissolved entity, the insured may be designated as the owner, provided that adequate proof is submitted with the Term Insurance Application. Adequate proof includes a death certificate for an individual policy owner, or relevant official record that an entity policy owner was dissolved.

2. The following procedure and mandatory steps shall govern Settlement Class Members' election and receipt of Term Insurance Relief:

- a. Counsel for Pacific Life shall identify Terminated Policies on the list of Class members that it provides to the Settlement Administrator (the "Initial List of Terminated Policies").

- b. Counsel for Pacific Life shall provide the Term Insurance Application to be used to apply for the Term Insurance Policies to the Settlement Administrator.
- c. Settlement Class Members whose PDX Policies are identified in the Initial List of Terminated Policies may obtain the Term Insurance Relief by submitting a completed Term Insurance Application through the Settlement Website or by mail no later than 60 days after the Notice Date (the "Term Insurance Application Deadline.") The Term Insurance Application, if mailed, must be (i) sent by first class mail properly addressed to the Settlement Administrator, postmarked on or before the Term Insurance Application Deadline, or (ii) submitted through the Settlement Website on or before 11:59 pm Pacific Time of the Term Insurance Application Deadline.
- d. The Settlement Administrator shall send by email (if an email address is available) a brief notice reminding any Settlement Class Members on the Initial List of Terminated Policies who have failed to submit a Term Insurance Application within forty-five (45) days after the Notice Date of the need to submit a Term Insurance Application by the Term Insurance Application Deadline.
- e. As set forth in Section III.A.4 above, any In-Force Policies that lapsed or were surrendered between the Data Collection Date and the Distribution Date will be treated as Terminated Policies so long as the insured is alive when a Term Insurance Application is submitted. The Settlement Administrator shall provide notice to Settlement Class Members who owned such Policies, informing them of the right to apply for Term Insurance Relief (the "Secondary Notice"). The Settlement Administrator shall send the Secondary Notice to the same address to which the original Class Notice was mailed no later than twenty (20) days after the Distribution Date. All eligible Settlement Class Members may obtain Term Insurance Relief by submitting a completed Term Insurance Application to the Settlement Administrator through the Settlement Website or by mail no later than sixty (60) days after the Distribution Date (the "Converted Term Insurance Application Deadline"). Any such Term Insurance Application submitted by mail must be (i) sent by first class mail properly addressed to the Settlement Administrator, postmarked on or before the Converted Term Insurance Application Deadline, or (ii) submitted on the Settlement Website no later than 11:59 pm Pacific Time of the Converted Term Insurance Application Deadline.
- f. The Settlement Administrator shall contact Settlement Class Members during the relevant Term Insurance and Converted Term

Insurance Application periods as necessary to attempt to cure any deficiencies in the Term Insurance Applications. The Settlement Administrator may do so by telephone, email, or by first-class postage pre-paid U.S. mail.

- g. At the conclusion of the Term Insurance Application Deadline and the Converted Termination Application Deadline, no new Term Insurance Applications may be accepted by the Settlement Administrator.
- h. The Settlement Administrator shall provide to Defendant's Counsel all Term Insurance Applications that the Settlement Administrator receives, with copies to Lead Class Counsel, within fourteen (14) days of the respective Term Insurance and Converted Term Insurance Application Deadlines.
- i. Pacific Life shall then process the Term Insurance Applications. To the extent there are defects in any Term Insurance Application, Pacific Life may reject any deficient application but must inform Lead Class Counsel, within thirty (30) days after receipt of the relevant Term Insurance Application, of any such deficiency and rejection.
- j. The Parties must confer in good faith to resolve any dispute surrounding the submission or validity of any Term Insurance Application.
- k. Pacific Life does not anticipate that it will send an IRS form 1099 to any Settlement Class Member who receives a Term Insurance Policy.

3. The Parties and the Settlement Administrator shall cooperate fully in obtaining from Settlement Class Members any information or documentation required by Pacific Life to facilitate issuance of the Term Insurance Policies, including but not limited to information required to process Term Insurance Applications.

4. The Term Insurance Policies will have an issue date that is the same as the Settlement Effective Date, and will be sent to and accepted by the Settlement Administrator from Pacific Life, and mailed to Settlement Class Members on or after the Distribution Date. In the unlikely event that an insured under any otherwise valid Term Insurance Application should die between the submission of the Term Insurance Application and the Effective Date, the face amount of the Term Insurance Policy applicable to the relevant Terminated Policy will be honored as though the Term Insurance Policy had been in force as of the date the Term Insurance Application was submitted. No person or entity will be entitled to more than one death benefit attributable to any one Terminated Policy of the Settlement Class Member.

5. The maximum Term Insurance Relief is made available to Settlement Class Members with Terminated Policies only through the timely submission of a Term Insurance Application, and the \$25,000,000 aggregate face amount available is not to be considered a part of the "total amount that will be payable to all class members." Cal. Code Civ. Proc. § 384(b). The failure by any Settlement Class Member with a Terminated Policy to timely claim Term Insurance Relief, and the future expiration of any of the Term Life Policies consistent with this Settlement Agreement, shall not be subject to the "unpaid residue" provisions of California Code of Civil Procedure § 384. To the extent any part of the Term Insurance Relief not paid as death benefits is considered "unpaid residue," any such residue will be retained by Pacific Life.

C. Report on In-Force Policy Relief and Term Insurance Relief. After the expiration of the Objection and Opt-Out Deadline, on a mutually agreed date, Pacific Life will provide to Lead Class Counsel (i) its calculation of the proportional reduction of the Gross Settlement Common Fund attributable to opt-outs and computed pursuant to Section III.A.3., (ii) for each In-Force Policy Settlement Class Member, the PDX Policy Number (or unique ID), the In-Force Policy Relief Percentage, the In-Force Policy Relief, and each factor used in the applicable calculations (iii) for each Settlement Class Member who is entitled to Term Insurance Relief, the PDX Policy Number (or unique ID), the Term Insurance Relief Percentage, the Term Insurance death benefit, and each factor used in the applicable calculations.

D. PDX Policy Cap Management Commitment. Pacific Life agrees not to manage the current PDX Growth Cap rates in isolation. Pacific Life further agrees that for a three-year period beginning on November 1, 2025, it will manage the Growth Caps for the PDX Policies consistent with and equal to the Growth Caps applicable to the comparable Indexed Accounts that are also available under the following actuarially similar single life IUL products: Pacific Indexed Accumulator 5 (PIA 5), Pacific Indexed Performer LT 2 (PIP LT 2), and PIA Protector 2 (PIA Pro 2).

E. Performance Factor Commitment. Pacific Life will not change the current PDX product OBR used in the Performance Factor formula for a three-year period beginning on November 1, 2025.

F. Notice and Administrative Costs. Pacific Life will separately pay the Settlement Administrator's fees and expenses (including the cost of printing and mailing of the Class Notice; maintaining the Settlement Website; collection, analysis, and reporting of Requests for Exclusion; collection, analysis, and transmittal of the Term Insurance Applications; and other administration costs of the Settlement Relief), which will not be paid or otherwise reimbursed by Plaintiff, Class Counsel, or the Settlement Class should the Settlement be terminated or disapproved for any reason, or should the Effective Date otherwise not be attained for any reason.

G. Pacific Life Payment of Additional Attorneys' Fees. In addition to the attorneys' fees and Litigation Expenses to be paid from the Gross Settlement Common Fund, Pacific Life agrees to pay to Class Counsel as and for attorneys' fees an additional and separate amount not to exceed 33% of the total agreed values set forth in Sections III.B, III.D, and III.E (the "Pacific Life Additional Fee Payment"), and not to exceed \$4.5 million. The Pacific Life Additional Fee Payment is subject to Court approval. Class Counsel shall be solely responsible for any taxes,

assessments, or levy imposed by any governmental agency as a result of their receipt of any attorneys' fees and Litigation Expenses in connection with the Settlement.

H. The Parties agree that the total estimated value made available to Settlement Class Members by the relief described in Sections III.B, D, and E is \$14.3 million.

IV. ATTORNEY'S FEES AND LITIGATION EXPENSES

A. Class Counsel contemplate filing the Class Fee and Expense Application with the Court seeking approval of: (i) an award of attorneys' fees paid from the Gross Settlement Common Fund not to exceed 33% of the total value of Gross Settlement Common Fund, plus (ii) reimbursement from the Gross Settlement Common Fund of Litigation Expenses, and a Service Award paid to Plaintiff from the Gross Settlement Common Fund not to exceed \$25,000 (described in Section V below), plus the Pacific Life Additional Fee Payment referenced in Section III.G. Class Counsel will file the Class Fee and Expense Application in advance of the Final Approval Hearing in accordance with the Court's Guidelines for Approval of Class Action Settlements & PAGA Settlements.

B. Any award of attorneys' fees, Litigation Expenses, and Service Award approved by the Court based on the Class Fee and Expense Application will be set forth in a Fee and Expense Order separate from the Final Approval Order, so that any appeal of one will not constitute an appeal of the other. Should the Court award a lower amount than requested by Class Counsel in the Class Fee and Expense Application, the Settlement will proceed. No order or proceedings relating to Class Counsel's Class Fee and Expense Application, nor any appeal from the Fee and Expense Order, or reversal or modification thereof, will operate to terminate or cancel this Settlement Agreement or otherwise delay the Effective Date of this Settlement.

C. No later than fourteen (14) days after the Effective Date, and after Lead Class Counsel has supplied Pacific Life with reasonable payment instructions and a completed W-9 form(s), Pacific Life will cause the Pacific Life Additional Fee Payment and the balance of any fee and expense awards due under the Fee and Expense Order to be paid to the law firm Bonnett Fairbourn Friedman & Balint, PC (the "Friedman Firm").

D. The Friedman Firm will, in its sole discretion, allocate, and distribute among Class Counsel and any other counsel, if applicable, the fees and reimbursed expenses that they receive pursuant to the Fee and Expense Order. Disagreements, if any, among Class Counsel and any other counsel, if applicable, relating to their respective shares of any such fee and expense award will have no impact on the effectiveness or the implementation of this Settlement Agreement, nor will such disagreements increase, modify, or otherwise affect the obligations imposed upon Pacific Life by this Settlement Agreement. Any such disagreements will be resolved by the Court.

E. No Party or Parties' counsel will be liable or obligated to pay any fees, expenses, costs, service awards, or disbursements to any person, either directly or indirectly, in connection with the Litigation, this Settlement Agreement, or the proposed Settlement, other than those expressly provided in this Settlement Agreement as being payable by such Party.

V. SERVICE AWARD

A. As part of the Class Fee and Expense Application, Class Counsel will apply to the Court for a Service Award to the Plaintiff, which will be deducted from the Gross Settlement Common Fund, in an amount not to exceed \$25,000. The purpose of such Service Award will be to compensate Plaintiff for her efforts undertaken on behalf of the Settlement Class. Pacific Life will pay any such Service Award approved by the Court by check, issued no later than fourteen (14) days after the Effective Date and receipt by Defendant's Counsel of a completed W-9 form for Plaintiff. The Service Award shall thereafter be delivered to the Friedman Firm by trackable mail, UPS, or FedEx, or as otherwise agreed by the Parties. Plaintiff shall be solely responsible for any costs, taxes, assessments, or levy imposed by any court or governmental agency as a result of her receipt of a Service Award. The Parties anticipate that Plaintiff will receive an IRS form 1099 from Pacific Life related to the Service Award.

B. Plaintiff's Service Award shall be an enhancement to other Settlement Relief available to Plaintiff in her capacity as a Settlement Class Member.

VI. SETTLEMENT ADMINISTRATION AND NOTICE PLAN

A. Retention of Settlement Administrator. Pacific Life will select and retain a Settlement Administrator, with the approval of Lead Class Counsel, whose approval shall not be unreasonably withheld, for the preparation and dissemination of the Settlement Notice and administration of the Settlement before or after Court approval. No part of the Settlement Relief may be diminished for this purpose, nor will Class Counsel or the Settlement Class bear any expense, responsibility, or liability for either Pacific Life's decision to select the Settlement Administrator or the Settlement Administrator's conduct or actions.

B. Settlement Administrator Duties Regarding the Parties' Information. The Settlement Administrator shall use information acquired from the Parties as the result of this Settlement Agreement solely for purposes of administering this Settlement and maintain reasonable data security measures.

C. Notice Plan. The Notice Plan utilized to provide notice of this Settlement to the Settlement Class shall be approved in the Court's Preliminary Approval Order. The Notice Plan shall be effectuated by the Settlement Administrator and shall include:

1. **Settlement Class Information.** Prior to the Notice Date, Pacific Life shall send to the Settlement Administrator in a secure manner the latest available contact information from Pacific Life's records for Persons in the Settlement Class as of the Preliminary Approval Date: the PDX Policy Owner's name, address, email address, PDX Policy number, and the PDX Policy's status as either an In-Force Policy or Terminated Policy (to be determined as of the Data Collection Date). If a Person in the Settlement Class owns or owned more than one PDX Policy, each PDX Policy shall be listed and treated separately for purposes of the Notice Plan.

2. **Direct Notice.** On the Notice Date, the Notice shall be disseminated by mail and email to all Settlement Class Members for whom a mailing or email address has been

provided by Pacific Life. Prior to sending the mail Notice, the Settlement Administrator shall use the U.S. Postal Service's National Change of Address System to verify or update address information for members of the Settlement Class. Prior to sending the email Notice, the Settlement Administrator shall use software to correct errors in email addresses provided for Persons in the Settlement Class. Should any mail Notice be returned as undeliverable without a forwarding address, the Settlement Administrator shall attempt to update address information by performing a skip trace. Should any mail Notice be returned with a forwarding address, the Settlement Administrator shall remail the mail Notice to that forwarding address. The Objection and Opt-Out Deadlines, and the deadline for the submission of Term Insurance Applications shall be extended for thirty (30) days for any Persons in the Settlement Class whose Notices were remailed.

3. **Settlement Website.** On the Notice Date, the Settlement Administrator shall establish and make live the Settlement Website, which shall be an Internet website concerning the Settlement using the domain name mutually agreed by the Parties. The Settlement Website shall be maintained by the Settlement Administrator for at least one hundred eighty (180) days after entry of the Final Approval Order and Judgment. The domain name of the Settlement Website shall be included in any Settlement Notice. The Settlement Website shall include: (i) the Notice; (ii) the Settlement Administrator's toll-free phone number applicable to the Settlement; (iii) copies of the Complaint, this Settlement Agreement and its Exhibits, and any Court Orders regarding the Settlement; (iv) the ability for Settlement Class Members to update their addresses; (v) a Frequently Asked Questions page regarding the Settlement with content approved by the Parties; and (vi) a link for eligible Settlement Class Members to complete and sign the Term Insurance Application electronically. Court filings that become available after the Settlement Website goes live will be posted by the Settlement Administrator to the Settlement Website within a reasonable period of time.

4. **Toll-Free Number for Settlement Administrator.** On the Notice Date, the Settlement Administrator shall establish a toll-free telephone number that will provide the Settlement Class with information regarding the Settlement and direct them to the Settlement Website. The toll-free number shall be included in all Notices. From the Notice Date up to the Objection and Opt-Out Deadline and Converted Term Insurance Application Deadline, the Settlement Administrator shall provide an Interactive Voice Response ("IVR") system. The IVR system shall be capable of (i) receiving requests for the Notice of Settlement; and (ii) providing general information concerning the Settlement deadlines, the dates and locations of relevant Court proceedings, including the Final Approval Hearing, and directions to the Settlement Website.

5. **Translations.** The Notice shall be translated to Spanish and Chinese (Simplified) on the Settlement Website.

6. **Proof of Compliance with Notice Plan.** The Settlement Administrator shall provide Class Counsel and Counsel for Defendant with a declaration detailing its compliance with the Notice Plan, in sufficient time to be filed as an exhibit to Plaintiff's Motion for Final Approval.

7. **Settlement Administrator Records.** The Settlement Administrator shall maintain and preserve records of all of its activities, including logs of any telephone calls, emails,

faxes, mailings, visits to the Settlement Website, and all other contacts with actual and potential Settlement Class Members. The Settlement Administrator shall also maintain a running tally of the number of and types of materials mailed or disseminated by the Settlement Administrator. The Settlement Administrator shall provide Class Counsel and Counsel for Defendant with periodic written reports, summarizing all statistics and actions taken by the Settlement Administrator in connection with administering the Settlement.

8. No Liability for Claims Administered Pursuant to Settlement Agreement. No Person shall have any claim against Pacific Life, Counsel for Pacific Life, Plaintiff, Class Counsel, Lead Class Counsel, the Released Parties, and/or the Settlement Administrator based on any determinations, distributions, actions taken, or awards made, with respect to this Settlement, so long as each of these individuals and entities act in accordance with the Settlement Agreement, the Preliminary Approval Order, and Final Approval Order.

VII. OPT-OUTS AND OBJECTIONS

A. Requests for Exclusion.

1. Any member of the Settlement Class who wishes to opt-out and be excluded from the Settlement Class may do so, but must submit a completed and executed ("Request for Exclusion") to the Settlement Administrator on or before the Objection and Opt-Out Deadline. A member of the Settlement Class who submits a Request for Exclusion cannot object to the Settlement and is not eligible to receive Settlement Relief under the Settlement.

2. In order to be valid and effective, a Request for Exclusion must be sent by first class mail properly addressed to the Settlement Administrator, postmarked on or before the Objection and Opt-Out Deadline, or submitted on the Settlement Website by no later than 11:59 pm Pacific Time of the Objection and Opt-Out Deadline. An exclusion form will be available on the Settlement Website. All information requested on the exclusion form must be completed in order for the Request for Exclusion to be effective. All Requests for Exclusion, including any such request that does not use the exclusion form from the Settlement Website (i) must clearly identify the case name and number; (ii) must include the printed name and address of the Class member seeking exclusion, and must be signed, and (iii) must clearly state that the Class member elects to be excluded from the Class. Any valid request for exclusion from a Class member will apply to all PDX Policies owned by that Class member.

3. Only the Class member may request exclusion from the Settlement Class, except that a legal representative or guardian may submit a Request for Exclusion on behalf of a deceased or incapacitated Class member. Any attempt to opt out on behalf of a group or class of Persons shall be null and void.

4. The Settlement Administrator will provide copies of all Requests for Exclusion to Class Counsel and Counsel for Defendant, and, no later than 14 days after Objection and Opt-Out Deadline, the Settlement Administrator shall provide a list to Class Counsel and Counsel for Defendant, reflecting all valid Requests for Exclusion, together with copies of the opt-out requests and any other related information.

5. Any Person in the Settlement Class who does not submit a valid and timely written Request for Exclusion as provided herein shall be bound by all subsequent proceedings, orders and judgments in this Litigation, including but not limited to the Release and the Final Approval Order and Judgment, even if such Settlement Class Member has litigation pending, or subsequently initiates litigation, against any Released Party relating to the Released Claims.

6. A member of the Settlement Class who opts out can, on or before the Objection and Opt-Out Deadline, withdraw their Request for Exclusion by submitting a written request to the Settlement Administrator stating their desire to revoke their Request for Exclusion and containing their actual written signature.

7. Any statement or submission purporting or appearing to be both an objection and opt-out shall be treated as a Request for Exclusion.

8. Other than responding to questions from the Settlement Class about the procedures for completing a Request for Exclusion provided by this Section, Class Counsel shall not directly or indirectly assist, cooperate with, or aid in any way Class members in excluding themselves from the Settlement or pursuing any separate actions against the Defendant or the Released Parties.

B. Objections. Any Settlement Class Member who does not submit a written Request for Exclusion may appear at the Final Approval Hearing and/or submit a written objection to the Settlement explaining why they believe that the Settlement should not be approved by the Court as fair, reasonable, and adequate.

1. A Settlement Class Member who wishes to object must mail to the Settlement Administrator at an address identified on the Notice, a written statement, postmarked by the Objection and Opt-Out Deadline, stating any objection(s) and any specific aspect(s) of the Settlement being challenged. Any such statement may, but is not required to, state the specific reason(s), if any, for the objection, including any evidence and legal authority that the Settlement Class Member wishes to bring to the Court's attention.

2. The written statement shall clearly identify the case name and number, and shall contain (i) the Settlement Class Member's printed name, address, telephone number, PDX Policy number, and email address; and (ii) the signature of the Settlement Class Member making the objection. An objection form will be made available on the Settlement Website, but no Settlement Class Member is required to use an objection form from the Settlement Website to make their objection.

3. A Settlement Class Member may object on their own behalf or through an attorney; provided, however, that even if represented, the objector must individually sign the objection, and timely submit the objection by first class mail properly addressed to the Settlement Administrator, postmarked by the Objection and Opt-Out Deadline, or by completing the objection form on the Settlement Website no later than 11:59 pm Pacific Time on the last day of the Objection and Opt-Out Deadline. All attorneys who are involved in any way in asserting the objection must be listed on the objection.

4. The Settlement Administrator will forward all objections to Class Counsel and Defendant's Counsel on a weekly basis.

5. A member of the Class who submits a valid Request for Exclusion may not object to the Settlement or speak at the Final Approval Hearing. Objections filed by Class members who have excluded themselves from the Class will not be considered.

6. Class Counsel will file a single packet of all objections with the Court in connection with the Motion for Final Approval.

7. The procedures for filing objections and appearing at the Final Approval Hearing are intended to ensure the fair and efficient administration of justice, consistent with the California Code of Civil Procedure and due process.

8. A Settlement Class Member who objects can withdraw their objection before the Final Approval Hearing by submitting a signed written request or email containing an electronic signature to the Settlement Administrator stating their desire to withdraw their objection. The Settlement Administrator will forward all such requests to Class Counsel and Defendant's Counsel on a weekly basis, and will ensure that all such requests submitted prior to the date of the Final Approval Hearing are forwarded prior to the Final Approval Hearing.

VIII. RELEASE AND WAIVER

A. Release. Upon the Effective Date, the Plaintiff and all Settlement Class Members, on behalf of themselves and all of their agents, heirs, estates, executors and administrators, successors, assigns, insurers, attorneys, representatives, and any and all Persons who seek to claim through or in the name or right of any of them (the "Releasing Parties"), expressly and irrevocably release and forever discharge, upon good and sufficient consideration, Defendant and all of their respective present and former administrators, insurers, reinsurers, firms, parents, subsidiaries, and affiliates, and all of Defendant and the foregoing Persons' respective predecessors, successors, assigns and present and former officers, directors, shareholders, employees, agents, indemnitees, attorneys, and representatives (collectively, the "Released Parties"), from any and all claims, demands, complaints, disputes, causes of action, rights of action, suits, debts, liabilities, obligations, and damages of every nature whatsoever, on any legal or equitable ground, whether based on federal, state, or local law, statute, ordinance, regulation, common law, private contract, agreement or any other authority, asserted or unasserted, known or unknown, that the Releasing Parties now have, ever had, or may in the future have, arising out of, the facts alleged in the Complaint or which were or could have been asserted in the Litigation based upon the facts alleged in the Complaint, including, without limitation, any and all claims for attorneys' fees, costs, or expenses, and any and all past and present claims, damages, or liability on any legal or equitable ground whatsoever ("Released Claims"). This Release is as a result of the Settlement Class Members' membership in the Settlement Class and status as Releasing Parties, the Court's approval process herein, and the occurrence of the Effective Date and is not conditioned on receipt of any particular Settlement Benefit by any particular Settlement Class Member or Releasing Party. Notwithstanding the foregoing, for purposes of clarification only, the Released Claims do

not include either pending or as yet unfiled policyowner claims for death benefits under the PDX Policies.

B. Good Faith Settlement. The Releasing Parties agree that the provisions of this Settlement Agreement and any claim thereunder constitute a good faith settlement under California Code of Civil Procedure Sections 877 and 877.6, and comparable laws in other states. Plaintiff and Class Counsel will not oppose a motion by Defendant in a subsequent action contending that this is a good faith settlement.

C. Assumption of Risk. Each of the Releasing Parties hereby does, and shall be deemed to, assume the risk that they may hereafter discover claims presently unknown or unsuspected, or facts in addition to or different from those which they now know or believe to be true with respect to the matters released here. Nevertheless, it is the intent of the Settlement to fully, finally and forever settle and release all such matters and all claims relating thereto, which exist, hereafter may exist, or might have existed (whether or not previously or currently asserted in any action). It is expressly understood that the Release will extinguish all claims of every nature regardless of whether the claims are known at the time of the Settlement or Final Approval Order and Judgment. Each of the Releasing Parties agrees that any such additional, different, or contrary facts shall in no way limit, waive, or reduce the foregoing Release, which shall remain in full force and effect.

D. California Civil Code and Any Counterparts from Other States. All Releasing Parties will be deemed by the Final Approval Order and Judgment to acknowledge and waive Section 1542 of the California Civil Code, which provides that: "**A GENERAL RELEASE DOES NOT EXTEND TO CLAIMS THAT THE CREDITOR OR RELEASING PARTY DOES NOT KNOW OR SUSPECT TO EXIST IN HIS OR HER FAVOR AT THE TIME OF EXECUTING THE RELEASE AND THAT, IF KNOWN BY HIM OR HER, WOULD HAVE MATERIALLY AFFECTED HIS OR HER SETTLEMENT WITH THE DEBTOR OR RELEASED PARTY.**" Settlement Class Members, on behalf of all Releasing Parties, expressly waive and relinquish any and all rights and benefits that they may have under, or that may be conferred upon them by, the provisions of Section 1542 of the California Civil Code, or any other law of any state or territory that is similar, comparable or equivalent to Section 1542, to the fullest extent they may lawfully waive such rights or benefits pertaining to the Released Claims. In connection with such waiver and relinquishment, the Settlement Class Members hereby acknowledge that the Releasing Parties are aware that they or their attorneys may hereafter discover claims or facts in addition to or different from those that they now know or believe exist with respect to Released Claims, but that it is their intention to hereby fully, finally, and forever settle and release all of the Released Claims known or unknown, suspected or unsuspected, that they have against the Released Parties. In furtherance of such intention, the Release herein given by the Releasing Parties to the Released Parties shall be and remain in effect as a full and complete general release notwithstanding the discovery or existence of any such additional different claims or facts. The Notice shall expressly inform all Settlement Class Members of the contents and effect of Section 1542, and that the Settlement Class Members, by accepting the benefits of the Settlement, will expressly waive whatever benefits they may have had pursuant to such section. Plaintiff acknowledges, and the Releasing Parties shall be deemed by operation of the Final

Approval Order and Judgment to have acknowledged, that the foregoing waiver was expressly bargained for and a material element of the Settlement of which this Release is a part.

E. Injunction. Upon the Effective Date, Plaintiff and the Settlement Class Members shall be permanently barred and enjoined from filing, commencing, prosecuting, intervening in, or participating in (individually or in a representative capacity) any lawsuit, action, or proceeding in any jurisdiction asserting or based upon any claims or causes of action released in the Settlement and Final Approval Order and Judgment; and from soliciting or encouraging any other Class members to participate in any such lawsuit, action, or proceeding.

F. Final Approval Order and Judgment will Resolve all Claims. Subject to Court approval, all Settlement Class Members shall be bound by this Settlement Agreement and the Released Claims of the Settlement Class Members and Releasing Parties will be resolved by the Final Approval Order and Judgment whether or not they received actual notice of the Litigation or this Settlement.

IX. FINAL APPROVAL AND IMPLEMENTATION

A. Motion for Final Approval of Settlement. Pursuant to the schedule to be set by the Court in its Preliminary Approval Order and at least sixteen (16) court days before the Final Approval Hearing, Class Counsel shall file a motion and supporting papers requesting that the Court grant final approval of this Settlement Agreement and for entry of the Final Approval Order and Judgment. The Final Approval Order and Judgment shall include provisions:

1. Determining that the Court has personal jurisdiction over Plaintiff and Settlement Class Members, that the Court has subject matter jurisdiction over the claims asserted in this Litigation and to approve the Settlement, and that venue is proper;

2. Certifying the Settlement Class for settlement purposes only;

3. Finally approving the Settlement Agreement and Settlement as fair, reasonable, adequate and consistent and in compliance with all applicable requirements of the California Code of Civil Procedure and due process;

4. Finding that the Notice Plan, Settlement Notice, and dissemination methodology complied with all applicable laws, including the Due Process Clause, and: (i) was fair, adequate and sufficient; (ii) constituted the best practicable notice under the circumstances; and (iii) was reasonably calculated to apprise the Settlement Class of the Litigation, the Settlement Agreement, their objection rights, their right to appear at the Final Approval Hearing, and their opt-out rights;

5. Entering final judgment without fees or costs except as provided herein, which may be awarded in a related Fee and Expense Order of the Court;

6. Requiring that the Final Approval Order and Judgment shall be posted to and remain on the Settlement Website for 180 days;

7. Incorporating the Release provisions of this Settlement Agreement, making the Release effective as of the Effective Date, and forever discharging the Released Parties from any claims or liabilities for any Released Claims;

8. Finding that Class Counsel and the Plaintiff have adequately represented the Class for purposes of entering into and implementing the Settlement;

9. Adjudging that the Releasing Parties have conclusively and forever settled and released the Released Claims against Defendant and all Released Parties;

10. Authorizing the Parties to implement the terms of the Settlement Agreement;

11. Permanently barring and enjoining Plaintiff and all other Settlement Class Members and those subject to their control, from commencing, maintaining, or participating in, or permitting another to commence, maintain, or participate in on their behalf, any Released Claims against the Released Parties as set forth above;

12. Retaining personal jurisdiction over the Settlement Class Members and jurisdiction relating to the administration, consummation, enforcement, and interpretation of the Settlement Agreement and the Final Approval Order and Judgment, and for any other necessary purpose without affecting the finality of the Final Approval Order and Judgment;

13. Providing that neither this Settlement Agreement nor any proposals, negotiations, communications, documents, or discussions relating to the Settlement shall be considered, used, or construed as an admission of any wrongdoing or liability by Defendant or any Released Party, and neither the terms of this Settlement Agreement nor any proposals, negotiations, communications, documents, or discussions preceding or related to the Settlement or this Settlement Agreement may be introduced or used in any proceedings as proof of any fact or point of law, except in a proceeding to enforce the terms of this Settlement Agreement;

14. Reserving jurisdiction under California Code of Civil Procedure § 664.6 to issue related Orders to effectuate the final approval of the Settlement Agreement and its implementation and enforcement; and

15. Incorporating any other provisions not inconsistent with the Settlement Agreement that the Court deems necessary and just.

16. Should the Court require a final accounting hearing after the Effective Date, the Parties agree to cooperate to compile and prepare any necessary information and status report to be submitted to the Court in connection with the hearing.

17. **Exclusive Remedy and Jurisdiction of Court.** All Settlement Class Members who do not properly file a timely written Request for Exclusion from the Settlement Class submit to the jurisdiction of the Court and will be bound by the terms of this Settlement Agreement, including, without limitation, the Release set forth herein. This Settlement Agreement

sets forth the sole and exclusive remedy for any and all claims of Settlement Class Members against Defendant and the Released Parties based upon the Settlement Class Members being purchasers and current or former owners of PDX Policies. Upon entry of the Final Approval Order and Judgment, each Person in the Settlement Class who has not validly and timely opted out of the Settlement Class shall be barred from initiating, asserting, continuing, or prosecuting any such claims against Defendant and any Released Party. The Released Claims do not include either pending or as yet unfiled claims for death benefits under the PDX Policies.

X. TERMINATION OF THE SETTLEMENT

A. Either of the Parties will have the option to terminate this Settlement Agreement on twenty (20) days' notice to the other if any of the following occurs:

1. The Court enters any order that is materially inconsistent with the terms of this Settlement Agreement;

2. The Court denies the Motion for Preliminary Approval with prejudice;

3. The Court determines that it will not approve the Settlement or any material part of it as reflected in this Settlement Agreement (though the Parties do not concede that every term of the Settlement or of this Settlement Agreement is material for these purposes);

4. The Court does not enter the Final Approval Order and Judgment;

5. The Final Approval Order and Judgment is vacated, modified, or reversed by an appellate court of competent jurisdiction; or

6. The Effective Date does not occur for any reason.

7. If this Settlement Agreement is terminated, it shall be void, and no Party shall be bound by any of its terms, except that the Parties shall remain bound by the terms of this Paragraph (including its subparts), which include:

a. Pacific Life, the Class Representative, and the Settlement Class Members shall be restored to their respective positions existing immediately before the execution of this Settlement Agreement;

b. Pacific Life expressly and affirmatively reserves all defenses, arguments and motions as to all claims that have been or might later be asserted in the Litigation, including, without limitation, any applicable statutes of limitation and the argument that the Litigation may not be litigated as a class action;

c. Neither this Settlement Agreement, the fact of its having been made, nor the negotiations leading to it, nor any action taken by the Parties or any Settlement Class Member pursuant to this Settlement

Agreement shall be admissible, entered into evidence, or used for any purpose whatsoever in this or any other legal or regulatory proceeding;

- d. Any order or judgment entered pursuant to the Settlement after the date of this Settlement Agreement, and prior to termination, shall be deemed vacated and shall be without any force or effect;
- e. The Parties shall jointly request that the Litigation, including the pending hearings on Plaintiff's Motion for Class Certification, Pacific Life's Motion for Summary Judgment, and related motions, be restored to the Court's calendar, at the earliest date available to the Court and counsel, taking into consideration whether the Parties wish to engage in further discussion regarding a potential settlement; and
- f. The Settlement Administrator shall post a notice on the Settlement Website that the Settlement has been terminated and that the Litigation will be returned to the Court's active docket.

XI. OTHER TERMS AND CONDITIONS

A. No Admission of Liability. The Parties expressly acknowledge that this Settlement Agreement is made in compromise of disputed claims, and that neither this Settlement Agreement nor any proposals, negotiations, communications, documents, or discussions relating to the Settlement shall be considered, used, or construed as an admission of any wrongdoing or liability by Defendant or any Released Party, and that, to the contrary, the Defendant expressly denies any wrongdoing, liability, or fault of any kind. Neither the terms of this Settlement Agreement nor any proposals, negotiations, communications, documents, or discussions preceding or related to the Settlement or this Settlement Agreement may be introduced or used in any proceedings as proof of any fact or point of law, except in a proceeding to enforce the terms of this Settlement Agreement. In the event that the Effective Date does not occur, this Settlement Agreement shall be terminated and only those provisions necessary to effectuate such termination and to restore fully the Parties to their respective positions before entry of this Settlement Agreement shall be given effect and enforced. In such event, the Parties shall bear their own costs, except that Defendant shall bear the costs of Settlement Administration up until the date that the Settlement Agreement is terminated.

B. Exclusive and Continuing Jurisdiction. Pursuant to California Code of Civil Procedure § 664.6, the Court shall retain exclusive and continuing jurisdiction to interpret and enforce the terms, conditions, and obligations of this Settlement Agreement and its own orders and judgments.

C. Defendant's Attorneys' Fees and Costs. Defendant shall bear its own attorneys' fees and costs in the Litigation.

D. Representation by Counsel. The Parties are represented by competent counsel, and they have had an opportunity to consult and have consulted with counsel prior to executing this Settlement Agreement. Each Party represents that it understands the terms and consequences of entering into this Settlement Agreement and executes it and agrees to be bound by the terms set forth herein knowingly and voluntarily.

E. Public Statements. Plaintiff, Defendant, Class Counsel, and/or Defendant's Counsel shall not hold any press conference or issue any press release or public statements regarding the Settlement reflected in this Settlement Agreement without the express written consent of Class Counsel and Defendant's Counsel. Plaintiff, Defendant, Class Counsel, and/or Defendant's Counsel may, however, make such statements as may be required to the Court, and they may make such disclosures as may be required by law, or as may be necessary for financial purposes (including without limitation, tax and audit purposes), or as appropriate to their employees or agents, or to respond to inquiries by Settlement Class members relating to the Settlement reflected in this Settlement Agreement, or to effectuate the Settlement. Defendant may also respond to inquiries from its customers or business partners about the Settlement. Class Counsel may include publicly available information from the Court record about the Settlement in their bios/CVs. To the extent that Plaintiff, Defendant, Class Counsel, and/or Defendant's Counsel desire to disseminate any other public statement regarding the Settlement reflected in this Settlement Agreement, such statement must be mutually agreed upon in writing by Lead Class Counsel and Defendant's Counsel prior to any such statement being made.

F. Mutual Cooperation. The Parties agree to cooperate with each other in good faith to accomplish the terms of this Settlement Agreement as may reasonably be necessary to implement the terms of this Settlement Agreement and obtain the Court's final approval of the Settlement Agreement including the entry of the Final Approval Order and Judgment. Plaintiff will share a draft of the motions seeking preliminary and final approval with Defendant's Counsel before filing with the Court.

G. Disposition of Materials. Consistent with the "Termination" provisions in Paragraph 29 of the Court's Stipulated Protective Order (ROA #130) entered in the Litigation on November 12, 2021, within sixty (60) days after the Court's final accounting hearing, Counsel for the Parties shall use "commercially reasonable efforts to purge all Confidential Information from all machine-readable media on which it resides and must either (a) return all Confidential Information to the party that produced the information, including any copies, excerpts, and summaries of that information, or (b) destroy same. Counsel, the Parties, and all of their respective agents shall comply with the terms of the Stipulated Protective Order, and the Parties understand and agree that the Court has retained jurisdiction "over the parties and recipients of Confidential Information and Materials or Testimony designated as confidential for enforcement of the provisions" of the Stipulated Protective Order following termination of the Litigation. *Id.* ¶ 30.

H. Other Notices. Unless otherwise specifically provided herein, other than the Settlement Notice, all notices, demands, or other communications given hereunder shall be in writing by mail or email and addressed to the undersigned counsel for the Parties.

I. Drafting of Settlement Agreement. The language of all parts of this Settlement Agreement shall be construed as a whole, according to its fair meaning, and not strictly for or against any Party. No Party shall be deemed the drafter of this Settlement Agreement. The Parties acknowledge that the terms of this Settlement Agreement are contractual and are the product of arms-length negotiations between the Parties and their counsel. The Parties, through their counsel, cooperated in the drafting and preparation of this Settlement Agreement, and this Settlement Agreement shall not be construed against any Party because of their role in drafting it.

J. Governing Law. This Settlement Agreement and the Exhibits hereto will be construed and enforced in accordance with, and governed by, the California Code of Civil Procedure and the Due Process clauses of the Constitutions of the State of California and the United States. The substantive laws of the State of California will apply to the extent that any issue of state law is implicated, without giving effect to the choice-of-law principles of that or any other state.

K. Modification. Except with respect to the Termination provisions described in Section X, this Settlement Agreement may not be changed, altered, or modified, except in writing and signed by the Parties. The Parties reserve the right to agree between themselves on any reasonable extensions of time that might be necessary to carry out any of the provisions of this Settlement Agreement. This Settlement Agreement may not be discharged except by performance in accordance with its terms or by a writing signed by the Parties.

L. Integration. This Settlement Agreement and its Exhibits contain the entire agreement between the Parties relating to the Settlement, and all prior or contemporaneous agreements, understandings, representations, and statements, whether oral or written and whether by a Party or its counsel, are merged herein. Each Party represents and warrants that it is not relying on any representation not expressly included in this Settlement Agreement. No rights hereunder may be waived except in writing.

M. Contract Rights. Neither this Settlement Agreement nor any of the relief to be offered under the proposed Settlement will be interpreted to alter in any way the contractual terms of any PDX Policy, or to constitute a novation of any PDX Policy. This Settlement Agreement does not, and will not be deemed to, create any fiduciary or similar relationship between Pacific Life and any of its current, past, or prospective policyholders or contract owners. This Settlement Agreement does not impose, and shall not be deemed to impose, any fiduciary or other similar duty on Pacific Life, and Pacific Life expressly disclaims any fiduciary or other similar duties. The duties and obligations assumed by Pacific Life are limited to those expressly set forth in this Settlement Agreement.

N. Use in Other Proceedings. The Parties expressly acknowledge and agree that this Settlement Agreement and its Exhibits, along with all related drafts, motions, pleadings, conversations, negotiations, mediation communications, and correspondence, constitute an offer of compromise and a compromise, and in no event shall this Settlement Agreement, any of its provisions or any negotiations, statements or court proceedings relating to its provisions in any way be construed as, offered as, received as, used as, or deemed to be evidence of any kind in the Litigation, in any other action, or in any judicial, administrative, regulatory or other proceeding,

except to enforce this Settlement Agreement or the rights of the Parties, their counsel, or the Released Parties.

O. Subheadings. Subheadings in this Settlement Agreement are for the purpose of clarity only and are not intended to modify the terms of this Settlement Agreement's text, which are controlling.

P. Waiver. The waiver by any party to this Settlement Agreement of any breach of its terms shall not be deemed or construed to be a waiver of any other breach of this Settlement Agreement, whether prior, subsequent, or contemporaneous.

Q. Signatures. Each Person executing this Settlement Agreement on behalf of any Party warrants that such Person has the authority to do so. This Settlement Agreement shall be binding upon, and inure to the benefit of, the agents, heirs, executors, administrators, successors, and assigns of the Parties.

R. Counterparts. This Settlement Agreement may be executed in any number of counterparts, including by electronic signature and/or DocuSign, each of which shall be deemed to be an original. All counterparts shall constitute one Settlement Agreement, binding on all Parties hereto, regardless of whether all Parties are signatories to the same counterpart, but the Settlement Agreement will be without effect until and unless all Parties to this Settlement Agreement have executed a counterpart.

S. Exhibits. All of the exhibits attached hereto are hereby incorporated by reference as though fully set forth herein. Notwithstanding the foregoing, in the event that a conflict or inconsistency exists between the terms of this Settlement Agreement and the terms of any exhibit hereto, the terms of this Settlement Agreement shall prevail.

(Signature Page Follows)

IN WITNESS WHEREOF, and intending to be legally bound, the Parties and their counsel have voluntarily signed this Settlement Agreement below and declare, certify, and acknowledge under penalty of perjury that the foregoing is true and correct.

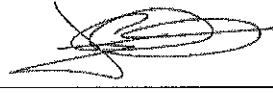
ABIGAIL MAMBOLEO



(Signature)

Date: October 29, 2025

**PACIFIC LIFE INSURANCE
COMPANY**

By: 

Name: Jay Orlandi

Title: Executive Vice President
and General Counsel

Date: October 29, 2025

**COUNSEL FOR ABIGAIL MAMBOLEO
AND THE PROPOSED SETTLEMENT
CLASS**

**BONNETT FAIRBOURN FRIEDMAN
& BALINT, PC**

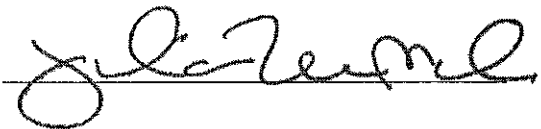
By: 

Name: Andrew S. Friedman

Date: October 29, 2025

**COUNSEL FOR PACIFIC LIFE
INSURANCE COMPANY**

CARLTON FIELDS, P.A.

By: 

Name: Julianna Thomas McCabe

Date: October 29, 2025

142004442

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF ORANGE**

ABIGAIL MAMBOLEO,
a California citizen, individually and
on behalf of all others similarly situated,

Plaintiff,

v.

PACIFIC LIFE INSURANCE COMPANY,
a California citizen,

Defendant.

Case No. 30-2021-01208045-CU-BT-CXC

Honorable Melissa McCormick
Department CX105

Complaint filed: June 29, 2021
Pretrial Conference: Not Set
Trial Date: Not Set

**CLASS ACTION SETTLEMENT AGREEMENT
AMENDMENT NO. 1**

WHEREAS, on October 29, 2025, the Parties in the above captioned action entered into a Class Action Settlement Agreement, subject to Court approval; and

WHEREAS, the capitalized terms used in this Amendment No. 1 to the Class Action Settlement Agreement shall have the meanings and/or definitions given to them in the Settlement Agreement; and

WHEREAS, the Court has scheduled a hearing for November 21, 2025 to consider whether to preliminarily approve the Settlement and order Notice to the Class; and

WHEREAS, the Parties have identified a scrivener's error in the Agreement, which requires correction in order to ensure internal consistency in the Agreement such that all relevant Class data in the Settlement is identified as of the same date, the Data Collection Date; and

WHEREAS, the Data Collection Date is October 31, 2025; and

WHEREAS, the sole purpose of this Amendment is to make the necessary corrections as set forth below;

NOW THEREFORE, in consideration of the mutual covenants and agreements set forth in the Agreement, Plaintiff, individually and on behalf of the Settlement Class as defined below, and Defendant, hereby agree to the following amendments, as set forth below:

Section III.A.2. is hereby amended, such that the phrase "Preliminary Approval Date" is replaced with "Data Collection Date," as follows (new language in bold and underlined type):

2. **Formula for Calculation of In-Force Policy Relief.** The In-Force Policy Relief credited to a Settlement Class Member for each In-Force Policy owned by the Settlement Class Member shall be calculated as follows:

$$A / B * C$$

Where:

A = In-Force Policy's Total Premiums Paid as of the **Data Collection Date**;

B = All In-Force Policies' Total Premiums Paid as of the **Data Collection Date**; and

C = the total Net Settlement Common Fund as calculated after the deductions referenced in Section III.A above

As used below in Section III.C., the "In-Force Policy Relief Percentage" means and shall be equal to A / B.

Section III.A.5. is hereby amended, such that the phrase "Preliminary Approval Date" is replaced with "Data Collection Date," as follows (new language in bold and underlined type):

5. The proportional reduction of the Gross Settlement Common Fund due to opt-outs shall be calculated as follows: $\$33,000,000.00 - (\$33,000,000.00 * (\text{the total premium paid for all PDX Policies owned by opt-outs (as of the **Data Collection Date**) / the total premium paid for all PDX Policies as of the **Data Collection Date**))$.

For example, if as of the **Data Collection Date**, there are 50 opt-outs who have paid a total of \$10,000,000.00 in premiums and the total premiums paid by all In-Force Policies is \$850,000,000.00, then \$396,000.00 will be deducted from the Gross Settlement Common Fund as follows:

$$\$10,000,000.00 / \$850,000,000.00 = 1.2\% \text{ of the total premiums paid by the class}$$

$$\$33,000,000.00 * 1.2\% = \$396,000.00$$

$$\$33,000,000.00 - \$396,000.00 = \$32,604,000.00 \text{ prior to the additional deductions referenced in Section III.A. above.}$$

Section VI.C.1. is hereby amended, such that the phrase "Preliminary Approval Date" is replaced with "Data Collection Date," as follows (new language in bold and underlined type):

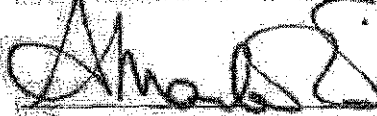
C. Notice Plan. The Notice Plan utilized to provide notice of this Settlement to the Settlement Class shall be approved in the Court's Preliminary Approval Order. The Notice Plan shall be effectuated by the Settlement Administrator and shall include:

1. **Settlement Class Information.** Prior to the Notice Date, Pacific Life shall send to the Settlement Administrator in a secure manner the latest available contact information from Pacific Life's records for Persons in the Settlement Class as of the **Data Collection Date**: the PDX Policy Owner's name, address, email address, PDX Policy number, and the PDX Policy's status as either an In-Force Policy or Terminated Policy (to be determined as of the Data Collection Date). If a Person in the Settlement Class owns or owned more than one PDX Policy, each PDX Policy shall be listed and treated separately for purposes of the Notice Plan.

(Signature Page Follows)

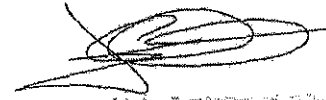
IN WITNESS WHEREOF, and intending to be legally bound, the Parties and their counsel have voluntarily signed this Amendment No. 1 to the Class Action Settlement Agreement below and declare, certify, and acknowledge under penalty of perjury that the foregoing is true and correct.

ABIGAIL MAMBOLEO


(Signature)

Date: 11/14/2025

PACIFIC LIFE INSURANCE
COMPANY

By: 

Name: Jay Orlandi

Title: Executive Vice President
and General Counsel

Date: 11/17/2025

COUNSEL FOR ABIGAIL MAMBOLEO
AND THE PROPOSED SETTLEMENT
CLASS

BONNETT FAIRBOURN FRIEDMAN
& BALINT PC

By: 

Name: Andrew Friedman

Date: 11/15/2025

COUNSEL FOR PACIFIC LIFE
INSURANCE COMPANY

CARLTON FIELDS, P.A.

By: 

Name: Julianna Thomas McCabe

Date: 11/17/2025

143496664

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF ORANGE**

ABIGAIL MAMBOLEO,
a California citizen, individually and
on behalf of all others similarly situated,

Plaintiff,

v.

PACIFIC LIFE INSURANCE COMPANY,
a California citizen,

Defendant.

Case No. 30-2021-01208045-CU-BT-CXC

Honorable Melissa McCormick
Department CX105

Complaint filed: June 29, 2021

Pretrial Conference: Not Set

Trial Date: Not Set

**CLASS ACTION SETTLEMENT AGREEMENT
AMENDMENT NO. 2**

WHEREAS, on October 29, 2025, the Parties in the above captioned action entered into a Class Action Settlement Agreement (the "Settlement Agreement"), subject to Court approval; and

WHEREAS, the capitalized terms used in this Amendment No. 2 to the Class Action Settlement Agreement shall have the meanings and/or definitions given to them in the Settlement Agreement; and

WHEREAS, the Court held a hearing on November 21, 2025 to consider whether to preliminarily approve the Settlement and order Notice to the Settlement Class; and

WHEREAS, to address various issues identified in the Court's tentative ruling dated November 20, 2025, to ensure internal consistency in the Settlement Agreement, and to address various questions raised by the Court at the preliminary approval hearing on November 21, 2025, the Parties have agreed upon certain changes to the Settlement Agreement and its Exhibits.

NOW THEREFORE, in consideration of the mutual covenants and agreements set forth in the Settlement Agreement, Plaintiff, individually and on behalf of the Settlement Class, and Defendant, hereby agree to the following amendments, as set forth below:

Section I.42.(e) is hereby amended to clarify the scope of exclusions from the Settlement Class related to pending or resolved lawsuits (new language in bold and underlined type):

42. The term "**Settlement Class**" or "**Class**" means, for purposes of this Settlement only: All Persons who purchased a PDX Policy issued in California, with the following

exclusions: (a) Pacific Life and its officers, members, directors, and employees, (b) Pacific Life's parents, subsidiaries, successors, predecessors, and any entity in which Pacific Life has a controlling interest; (c) the judge adjudicating this action; (d) any Person whose PDX Policy has a Deceased Insured; (e) any Person alleging wrongful inducement in the purchase of a PDX Policy, **or asserting any claims or legal theories arising out of the facts alleged in the Complaint,** in any pending or resolved lawsuit against Pacific Life other than this action; and (f) the legal representatives, successors, or assigns of any of the foregoing excluded Persons, but only in their capacity as such.

Section III.C is hereby amended to clarify the timing and content of the Report on In-Force Policy Relief and Term Insurance Relief (new language in bold and underlined type):

C. **Report on In-Force Policy Relief and Term Insurance Relief.** After the expiration of the Objection and Opt-Out Deadline **and after the Court has made a final ruling on Plaintiff's Class Fee and Expense Application,** on a mutually agreed date **prior to the Distribution Date,** Pacific Life will provide to Lead Class Counsel (i) its calculation of the proportional reduction of the Gross Settlement Common Fund attributable to opt-outs and computed pursuant to Section III.A.3., (ii) for each In-Force Policy Settlement Class Member, the PDX Policy Number(s) (or unique ID(s)), the In-Force Policy Relief Percentage **for each In-Force Policy,** the In-Force Policy Relief **for each In-Force Policy,** and each factor used in the applicable calculations, (iii) for each Settlement Class Member who is entitled to Term Insurance Relief, the PDX Policy Number(s) (or unique ID(s)), the Term Insurance Relief Percentage **for each Terminated Policy,** the Term Insurance death benefit, and each factor used in the applicable calculations **(the "Report"). On a mutually agreed date after the expiration of the Converted Term Insurance Application Deadline, Pacific Life will provide to Lead Class Counsel an update to the Report to account for the Term Insurance Relief calculations for those In-Force Policies that terminated prior to the Distribution Date and which are to be treated as Terminated Policies under Section III.A.6.**

Section III.D. is hereby amended to clarify that the PDX Policy Cap Management Commitment is a single, three-year commitment (new language in bold and underlined type, and deleted language stricken):

D. **PDX Policy Cap Management Commitment.** Pacific Life agrees **that, for a three-year period beginning on November 1, 2025, it will** not to manage the current PDX Growth Cap rates in isolation, ~~but Pacific Life further agrees that for a three-year period beginning on November 1, 2025, it will~~ **instead** manage the Growth Caps for the PDX Policies consistent with and equal to the Growth Caps applicable to the comparable Indexed Accounts that are also available under the following actuarially similar single life IUL products: Pacific Indexed Accumulator 5 (PIA 5), Pacific Indexed Performer LT 2 (PIP LT 2), and PIA Protector 2 (PIA Pro 2).

Section VIII.C. is hereby amended, to be consistent with scope of the Release as follows (new language in bold and underlined type):

C. **Assumption of Risk.** Each of the Releasing Parties hereby does, and shall be deemed to, assume the risk that they may hereafter discover claims presently unknown or unsuspected, or facts in addition to or different from those which they now know or believe to be true with respect to the matters released here. Nevertheless, it is the intent of the Settlement to fully, finally and forever settle and release all such matters and all claims relating thereto, which exist, hereafter may exist, or might have existed (whether or not previously or currently asserted in any action). It is expressly understood that the Release will extinguish all claims of every nature arising out of the facts alleged in the Complaint, or which were or could have been asserted in the litigation based upon the facts alleged in the Complaint, regardless of whether the claims are known at the time of the Settlement or Final Approval Order and Judgment. Each of the Releasing Parties agrees that any such additional, different, or contrary facts shall in no way limit, waive, or reduce the foregoing Release, which shall remain in full force and effect.

Section VIII.D. is hereby amended, to be consistent with scope of the Release as follows (new language in bold and underlined type):

D. **California Civil Code and Any Counterparts from Other States.** All Releasing Parties will be deemed by the Final Approval Order and Judgment to acknowledge and waive Section 1542 of the California Civil Code, which provides that: "**A GENERAL RELEASE DOES NOT EXTEND TO CLAIMS THAT THE CREDITOR OR RELEASING PARTY DOES NOT KNOW OR SUSPECT TO EXIST IN HIS OR HER FAVOR AT THE TIME OF EXECUTING THE RELEASE AND THAT, IF KNOWN BY HIM OR HER, WOULD HAVE MATERIALLY AFFECTED HIS OR HER SETTLEMENT WITH THE DEBTOR OR RELEASED PARTY.**" Settlement Class Members, on behalf of all Releasing Parties, expressly waive and relinquish any and all rights and benefits that they may have under, or that may be conferred upon them by, the provisions of Section 1542 of the California Civil Code, or any other law of any state or territory that is similar, comparable or equivalent to Section 1542, to the fullest extent they may lawfully waive such rights or benefits pertaining to the Released Claims. In connection with such waiver and relinquishment, the Settlement Class Members hereby acknowledge that the Releasing Parties are aware that they or their attorneys may hereafter discover claims or facts in addition to or different from those that they now know or believe exist with respect to Released Claims, but that it is their intention to hereby fully, finally, and forever settle and release all of the Released Claims known or unknown, suspected or unsuspected, that they have against the Released Parties. In furtherance of such intention, the Release herein given by the Releasing Parties to the Released Parties shall be and remain in effect as a full and complete general release of all such Released Claims notwithstanding the discovery or existence of any such additional different claims or facts. The Notice shall expressly inform all Settlement Class Members of the contents and effect of Section 1542, and that the Settlement Class Members, by accepting the benefits of the Settlement, will expressly waive whatever benefits they may have had pursuant to such section. Plaintiff acknowledges, and the Releasing Parties shall be deemed by operation of the Final Approval Order and Judgment to have acknowledged, that the foregoing waiver was expressly bargained for and a material element of the Settlement of which this Release is a part.

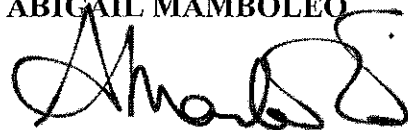
Exhibit A to the Agreement, the Final Approval Order and Judgment, is hereby amended in the form attached as Amended Exhibit A.

Exhibit B to the Agreement, the Settlement Notice, is hereby amended in the form attached as Amended Exhibit B.

Exhibit C to the Agreement, the Order Granting Preliminary Approval of Class Action Settlement and Directing Notice to Settlement Class, is hereby amended in the form attached as Amended Exhibit C.

IN WITNESS WHEREOF, and intending to be legally bound, the Parties and their counsel have voluntarily signed this Amendment No. 2 to the Class Action Settlement Agreement below and declare, certify, and acknowledge under penalty of perjury that the foregoing is true and correct.

ABIGAIL MAMBOLEO



(Signature)

Date: 12/11/2025

**PACIFIC LIFE INSURANCE
COMPANY**

By: _____

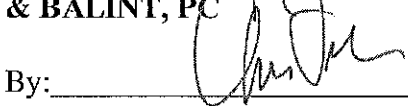
Name: Jay Orlandi

Title: Executive Vice President
and General Counsel

Date: _____

**COUNSEL FOR ABIGAIL MAMBOLEO
AND THE PROPOSED SETTLEMENT
CLASS**

**BONNETT FAIRBOURN FRIEDMAN
& BALINT, PC**



By: _____

Name: Andrew S. Friedman

Date: 12/11/2025

**COUNSEL FOR PACIFIC LIFE
INSURANCE COMPANY**

CARLTON FIELDS, P.A.

By: _____

Name: _____

Date: _____

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Exhibit B to the Agreement, the Settlement Notice, is hereby amended in the form attached as Amended Exhibit B.

Exhibit C to the Agreement, the Order Granting Preliminary Approval of Class Action Settlement and Directing Notice to Settlement Class, is hereby amended in the form attached as Amended Exhibit C.

IN WITNESS WHEREOF, and intending to be legally bound, the Parties and their counsel have voluntarily signed this Amendment No. 2 to the Class Action Settlement Agreement below and declare, certify, and acknowledge under penalty of perjury that the foregoing is true and correct.

ABIGAIL MAMBOLEO

(Signature) _____

Date: _____

**COUNSEL FOR ABIGAIL MAMBOLEO
AND THE PROPOSED SETTLEMENT
CLASS**

**BONNETT FAIRBOURN FRIEDMAN
& BALINT, PC**

By: _____

Name: _____

Date: _____

**PACIFIC LIFE INSURANCE
COMPANY**

By:  _____

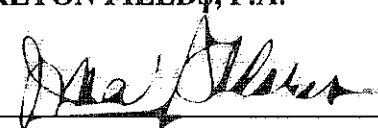
Name: Jay Orlandi

Title: Executive Vice President
and General Counsel

Date: 12/11/2025

**COUNSEL FOR PACIFIC LIFE
INSURANCE COMPANY**

CARLTON FIELDS, P.A.

By:  _____

Name: IRMA SOLARES

Date: 12/11/25

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